



Ministry of Housing,
Communities &
Local Government

Guidance

Awaab's Law: Guidance for tenants in social housing

Updated 4 December 2025

Applies to England

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Versions of this guidance translated into Punjabi, Urdu, Arabic, Romanian, Polish and Bangla will be available soon. We will also publish an easy read and a British Sign Language version.

1. Introduction, background and overview

Background

Awaab's Law is named after Awaab Ishak, a 2-year-old who tragically died in 2020 from a lung condition caused by mould in his home. His parents told their social landlord about the mould many times over 3 years, but nothing was done to fix the problem. We want to say thank you to Awaab's family for their work campaigning for a law to make sure social landlords make repairs to their homes within set timeframes. Awaab's Law aims to make sure no one else has the same experience, and to make sure social landlords fix serious problems quickly.

What is this guidance for?

This guidance aims to help you to understand what Awaab's Law means for you. It explains what landlords must do and what steps you can take if your landlord doesn't meet their responsibilities.

Homes that are safe are essential for good health, so it is important to report hazards - particularly if they are having an impact on your health, or make you feel at risk. Your landlord cannot treat you unfairly for making a complaint. They should make clear how you can raise an issue.

A brief summary of Awaab's Law can be found on the [Make Things Right Campaign website](https://housinghub.campaign.gov.uk/make-things-right/new-law/) (<https://housinghub.campaign.gov.uk/make-things-right/new-law/>).

There is also guidance for [social housing landlords](https://www.gov.uk/government/publications/awaabs-law-guidance-for-social-landlords) (<https://www.gov.uk/government/publications/awaabs-law-guidance-for-social-landlords>) on implementing Awaab's Law.

Quick guide to Awaab's Law

Emergency hazards and significant damp and mould hazards (as set out in Section 5) must be dealt with by your landlord within set timescales. You need to provide as much information as you can on the hazard and who lives in your home to your landlord, so they can make an accurate decision. Further detail on the information your landlord might need is in Section 6.

Summary of Awaab's Law:

- emergency repairs must be done within 24 hours
- significant damp and mould hazards must be investigated within 10 working days and made safe within 5 working days
- if your home can't be made safe in time, your landlord must offer you somewhere else suitable to stay until it is. More information on suitable alternative accommodation can be found in Section 9
- your landlord needs to tell you what is happening once you have reported an issue and if action they take is covered by Awaab's Law. They must give you a written summary within 3 working days of an investigation finishing. More information on written summaries can be found in Section 8
- if you report an issue and it hasn't been sorted or you're not happy, you can complain to your landlord through your landlord's complaints process
- if you're not happy with your landlord's final response to your complaint, you can take your complaint to the Housing Ombudsman
- you can also go through the Pre-Action Protocol for Housing Conditions Claims. This is a process that helps tenants and landlords try to fix issues before going to court. More information on the routes to take if your landlord doesn't act can be found in Section 11

Further help and support

If you would like further support, the following organisations offer free, impartial and confidential advice on housing issues, including Awaab's Law:

- [Shelter \(https://www.shelter.org.uk/\)](https://www.shelter.org.uk/)
- [Citizens Advice \(https://www.citizensadvice.org.uk/\)](https://www.citizensadvice.org.uk/)
- [Housing Ombudsman \(https://www.housing-ombudsman.org.uk/\)](https://www.housing-ombudsman.org.uk/)
- Your [local council environmental health team \(https://www.gov.uk/find-local-council\)](https://www.gov.uk/find-local-council)

2. What does Awaab's Law include

Awaab's Law means that social landlords must investigate **significant hazards caused by damp or mould** and **all emergency hazards** in your home and make them safe within set deadlines. Section 5 explains the different types of hazards and section 6 explains how your landlord should assess them. Awaab's Law can be used to address existing hazards or new hazards when they appear.

Awaab's Law means:

- emergency hazards (for example, dangerous electrical faults, damaged external doors or windows and major leaks) must be investigated and made safe within **24 hours**
- significant damp and mould hazards must be investigated within **10 working days** of it being reported and then must be made safe within **5 working days of the investigation finishing**
- your landlord must give you a written summary of what they found and how they will make the property safe within 3 working days after the investigation is finished
- if more work is needed to stop the hazard from coming back, your landlord must start the work or make plans for the work to begin within **5 working days of the investigation finishing**. All work must begin within **12 weeks at the latest**
- if your home can't be made safe in time, your landlord must offer and find you somewhere else to stay for free, while they do the works needed to make your home safe for you to return

Your landlord must keep you updated throughout the process and give you advice on how to stay safe while repairs are being made.

3. Step by Step Guides

What to do if you spot an emergency hazard

Diagram 1: Step by Step Guide for an Emergency Hazard

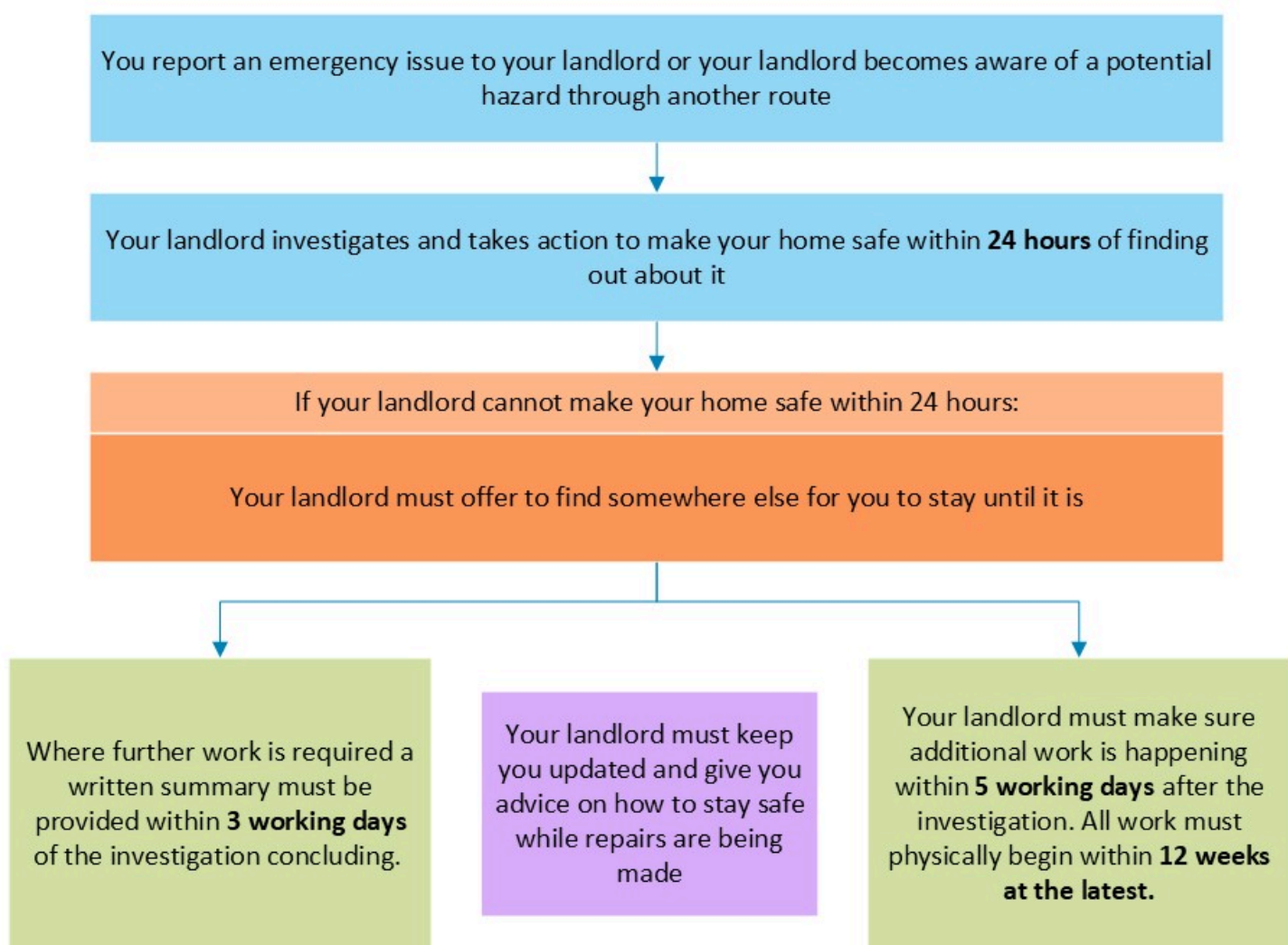


Diagram 1 provides a simplified overview of the process and timeframes under Awaab's Law for emergency hazards to support understanding.

Step 1

You report an emergency issue to your landlord or your landlord becomes aware of a potential hazard through another route.

Step 2

Your landlord investigates and takes action to make your home safe within 24 hours of finding out about it.

If your landlord cannot make your home safe within 24 hours, your landlord must offer to find somewhere else for you to stay until it is

Step 3

Where further work is required a written summary must be provided within 3 working days of the investigation concluding.

Step 4

Your landlord must make sure additional work is happening within 5 working days after the investigation. All work must physically begin within 12 weeks at the latest.

Your landlord must keep you updated and give you advice on how to stay safe while repairs are being made.

What to do if you spot a significant damp and mould hazard

Diagram 2: Step by Step Guide for a Significant Damp and Mould Hazard

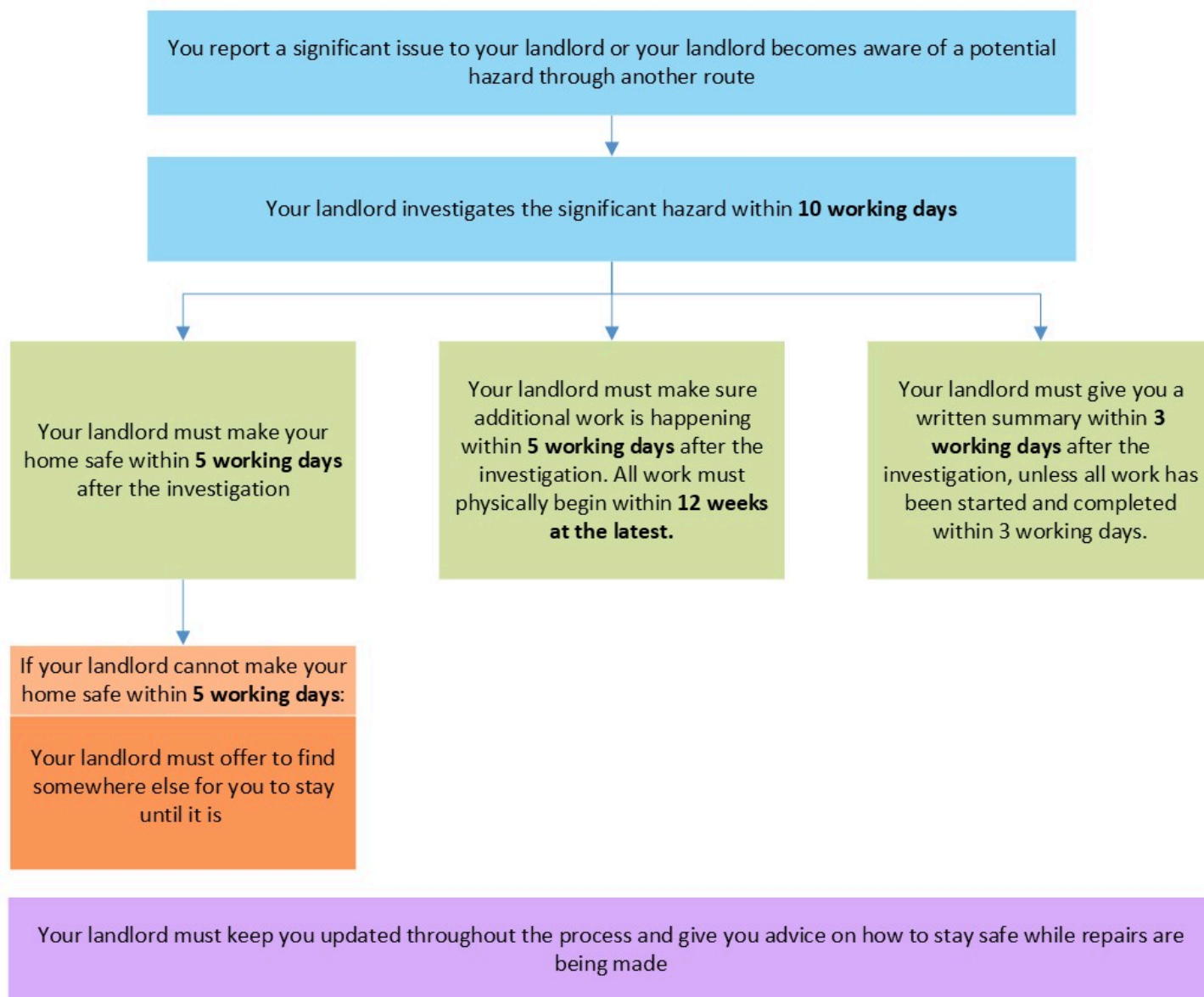


Diagram 2 provides a simplified overview of the process and timeframes under Awaab's Law for significant hazards to support understanding.

Step 1

You report a significant issue to your landlord or your landlord becomes aware of a potential hazard through another route.

Step 2

Your landlord investigates the significant hazard within 10 working days.

Step 3

Your landlord must make your home safe within 5 working days after the investigation.

If your landlord cannot make your home safe within 5 working days, your landlord must offer to find somewhere else for you to stay until it is.

Step 4

Your landlord must give you a written summary within 3 working days after the investigation, unless all work has been started and completed within 3 working days.

Step 5

Your landlord must make sure additional work is happening within 5 working days after the investigation. All work must physically begin within 12 weeks at the latest.

Your landlord must keep you updated and give you advice on how to stay safe while repairs are being made.

4. Housing covered by Awaab's Law

Is my home covered under Awaab's Law?

Awaab's Law applies to most people living in social housing with a tenancy agreement.

Where do you live?	Does Awaab's Law apply?
Home rented from the council	Yes
Home rented from a housing association	Yes
Supported housing	Check
Temporary accommodation	Check

If you live in supported housing or temporary accommodation you might have a licence agreement, not a social housing tenancy agreement, which means Awaab's Law would not apply to you. However, this is not always the case, and you should check your paperwork for what type of tenancy agreement you have or ask your landlord to confirm.

Whether you have a tenancy or licence agreement, your landlord has a duty to keep you safe from hazards, and it's important you still report these.

5. What is a 'hazard'?

Awaab's Law refers to 2 levels of hazard, these are 'significant hazard' and 'emergency hazard'. These are set out in the table below.

What is a 'hazard' and what should happen?	Emergency Hazard	Significant Damp and Mould Hazard
What is it?	An emergency hazard is something in your home that needs to be fixed right away because it is causing or could cause serious harm to your health or safety - or the health or safety of anyone living with you.	A significant hazard is something in your home that could or is already causing serious harm to your health or safety - or the health or safety of anyone living with you. Right now, Awaab's Law focuses on significant hazards caused by damp or mould
Detailed description	Under Awaab's Law, a hazard is considered an 'emergency' if: - it could be an immediate risk to your health and safety or the health and safety of anyone who lives with you - this means a responsible landlord would see it as urgent and take action to fix it within 24 hours based on what they know or what you tell them about your situation.	Under Awaab's Law, a hazard due to damp or mould is considered a 'significant' hazard if: - it could be a risk to your health or safety - this means a responsible landlord would see it as urgent and take action to fix it quickly (though not within 24 hours) based on what they know and what you tell them about your situation.
Investigations	Landlords must investigate within 24 hours	Landlords must investigate within 10 working days
Making your home safe	Landlords must make your home safe within 24 hours of the landlord finding out about the hazard.	Landlords must make your home safe within 5 working days of the investigation concluding.

What is a 'hazard' and what should happen?	Emergency Hazard	Significant Damp and Mould Hazard
Further works	When the investigation has finished, the landlord must begin or make plans for the work to begin within 5 working days . All work must start within 12 weeks at the latest .	When the investigation has finished, the landlord must begin or make plans for the work to begin within 5 working days . All work must start within 12 weeks at the latest .
Written summary	Where further work is required a written summary must be provided within 3 working days of the investigation concluding.	Within 3 working days after the investigation concludes.
Examples of hazards	- gas or carbon monoxide leaks - broken boilers - no water supply at all - dangerous electrical problems (like exposed wires) - major leaks - broken external doors or windows that make your home unsafe - very serious damp or mould - major structural problems	- any damp and mould can be a risk to you and the physical health of any one who lives with you. It affects the airways and lungs, but also your eyes and skin - damp and mould can also affect your mental health, for example worrying about the health impacts or unpleasant living conditions - everyone can be at risk to the health impacts of damp and mould, but you might be at greater risk if you have a certain health condition - further guidance on the risks of damp and mould is available

Smell gas or suspect a leak?

Call **0800 111 999** *

(24 hours a day – free to call).

To report a gas or carbon monoxide emergency, or if a pipeline is struck (even if no gas leak has occurred) call the National Gas Emergency Service immediately on **0800 111 999**

If you're a British Sign Language (BSL) user, you can use [SignLive](https://www.sgn.co.uk/signlive) (<https://www.sgn.co.uk/signlive>) to contact the National Gas Emergency Service free of charge.

For more information on communication support for people with hearing or speech difficulties, please visit [Relay UK](https://www.relayuk.bt.com/) (<https://www.relayuk.bt.com/>)

*All calls are recorded and may be monitored

6. Telling your landlord about a hazard

If you think there is a hazard in your home, report it to your landlord. They will need to decide if it is a significant hazard or an emergency hazard when you report it. We have published guidance to help landlords understand what's expected of them under Awaab's Law, so they can make fair and accurate decisions about hazards in your home. They might need to act faster if the issue is more serious.

To help you get the right support, it's important to be ready with as much information as possible about you, who lives with you in your household, and the issue itself. Your landlord will need to think about the points in the list below and might ask you about them to make an assessment quickly and accurately. They should also use information they already have in their records.

Your landlord will need to think about:

1. the **type of problem** (for example, mould, broken heating, unsafe stairs)
2. the people you live with: this includes children who stay in your home, even if they are not there every night
3. your **personal situation and those of people you live with**, like your age, health, and those of other people living in your home
4. what the landlord knows about your home, such as any existing problems or recent work
5. how likely the problem is to cause harm, and how serious that harm could be

Your landlord might ask you about:

- **who lives in the home** - this helps your landlord understand who is more at risk from hazards, like children or people with disabilities
- **any information that might mean people are more at risk** - conditions like asthma, mobility issues, or a weak immune system can make hazards like damp, mould or cold more serious. Let your landlord know so they can make an accurate decision

- **the best way to contact you** - this can be by phone, email, letter, or through a support worker. This helps avoid delays, especially in urgent situations
- **any support or communication needs (like translation or accessibility)** - if you need translation, large print, or extra help understanding information, tell your landlord so you can stay informed and involved

How will your information be used?

You don't have to share personal details you're uncomfortable with, and you don't need to give evidence from your doctor. But sharing as much information as possible can help your landlord understand the situation and what needs to be done to help, as they can only act on the information they have.

Under UK data protection laws (UK General Data Protection Regulation (GDPR) and the Data Protection Act 2018), your landlord must:

- get your clear consent to use this sensitive information
- explain how your information will be used
- keep it secure
- only use it for the agreed purpose

Health and disability information is classed as 'special category' data and must be handled with extra care. You have the right to see your data, ask for changes, or withdraw consent at any time.

Other tips for reporting a hazard:

- landlords can use photographs and videos to make a decision, so it's a good idea to provide these to your landlord if you can
- your landlord should tell you how to report a hazard in your home. Always use your landlord's **official contact methods**, like phone, email, or their online system, for example their website. You should avoid using social media to report issues unless your landlord has confirmed that it is suitable for reporting problems
- keep a record of all communication when reporting a hazard to your landlord: this means the hazard you reported, when you reported this, how you reported it and who to
- even if you don't have a specific health condition, some hazards, like faulty wiring, can be dangerous to anyone. So, if you are worried, report it to your landlord
- even if you're not sure the hazard is covered by Awaab's Law, report it anyway. Landlords should still sort things out as quickly as possible
- if you've reported a problem before but it's got worse or the impact on your health is getting worse, you can report it again to your landlord. This is called a 'material

change' and means that the issue may now be covered under Awaab's Law. You don't need to provide medical evidence of the impact on your health, however you might want to tell your landlord and share this information if you already have it. If a problem has reappeared, the landlord should take further action

Landlords also have to take action if they find out about a hazard through a different route. This could be when:

- **you or someone else** report a problem
- **a contractor or inspector** notices something
- **another organisation, such as an advice organisation** raises a concern
- **the landlord** spots or is shown an issue during a visit to your home

If you tell a contractor or someone else about your issues, you should also follow up using your landlord's official contact methods to make sure it has been picked up.

7. Investigations

However your landlord finds out about a hazard, the countdown for investigations starts as soon as they are aware of it.

What is an investigation?

An investigation is when your landlord looks into the issue you have reported to understand the problem and find out what repairs are needed to fix the hazard and stop it from returning. Investigations can be done in person by visiting your home to look at the problem or remotely by using photos or videos.

Under Awaab's Law, there are 4 types of investigation.

Type of Investigation	Description
Emergency Investigations	If there might be an emergency, the landlord must start an emergency investigation within 24 hours . The investigation should confirm if there's an emergency hazard and what urgent repairs are needed to make your home safe.
Standard Investigations	If there might be a significant hazard, the landlord must start a standard investigation within 10 working days . This should confirm it's a hazard, and to identify any repairs needed. If the investigation

Type of Investigation	Description
	finds the hazard is an emergency, the faster emergency timeframes will start to apply.
Renewed Investigations	If your landlord investigates a hazard remotely and you don't feel that was enough, you can ask for an in-person inspection . Your landlord must carry out a new investigation in person within 10 working days of your request – so we recommend asking for this early in the process.
Further Investigations	Sometimes, your landlord might not know right away what's causing a serious issue like damp or mould. If your landlord finds that more work is needed to fix a hazard properly, they must carry out further checks. For example, they might need to arrange a structural survey. While they investigate, they still have to take steps to keep you safe, like treating visible mould or providing a dehumidifier.

Who will investigate?

In some cases, a housing or maintenance officer may be able to investigate, but in other situations the landlord might need to bring in a specialist to do a more in-depth investigation.

Why is allowing access to your home important?

If your landlord needs to investigate a hazard or carry out repairs, they will need to try to access your home quickly. They should:

- **offer different time slots** that work for you and keep to these
- **contact you in whatever way suits you best** and meets your needs— that might mean using more than one method, like phone, email, text or letter, and trying more than once at different times of day
- **explain why access is needed** and what will happen
- **support you if you're worried** about letting someone in, for example by working with you to arrange for a family member, friend or support worker to be present.
- **leave a note if they miss you**, so you can set up a new time

If you don't allow access and your landlord has tried to contact you to arrange access to your home a number of times and has made an effort to meet your needs, they may not be held responsible for delays.

Under Awaab's Law, your tenancy automatically includes a contractual requirement to allow your landlord (or someone they've given permission to in writing) to access your home, to carry out safety and repair duties like investigating or fixing damp, mould, or other emergency hazards. Landlords must visit at reasonable times only and must give at least 24 hours' written notice – unless it's an emergency, in which case notice might be communicated and agreed by phone.

8. Written summary

Once the first investigation has finished, the landlord must usually give you a written summary within 3 working days.

What is included in the written summary?

The written summary is intended to make sure you know what is happening to fix the hazard in your home.

A written summary should explain:

- if a significant or emergency hazard was found or not
- what is need to make the property safe, as well as what needs to be done to prevent the problem from coming back
- when the work is likely to start and be finished
- how to contact the landlord

If no hazard is found, the summary must still say why no action is needed. If more than one investigation is done, you should be sent a summary 3 working days after each one.

The summary can be delivered:

- in person
- by post
- by email

- by text message
- left at your home

The 3 day deadline is for your landlord to send it, not for you to receive it. You should let your landlord know the best way to provide the written summary to you and any accessibility requirements (for example, large print, another language). You should consider giving your landlord an email address as this is the quickest way they can send you a written summary.

A written summary is not needed if the issue is fully fixed within 3 days. If only part of the work is done (for example, treating mould but not fixing the cause), a written summary is still needed.

Making your home safe

Your landlord should make your home safe within 24 hours for an emergency hazard and within 5 working days of the investigation finishing for a significant damp or mould hazard.

To stop the hazard from coming back, your landlord may need to do further repairs. This work must start, or plans must be made for the work to start within 5 working days of the investigation finishing – for example booking someone to start work to fix the problem. All work must begin within 12 weeks at the latest.

Your landlord should keep you updated. They should follow up after work has been carried out to make sure that the issue has been fixed and, for example, that damp or mould have not reappeared.

9. Providing suitable alternative accommodation

If your landlord cannot make your home safe in the timescales set by the law (24 hours for emergencies and 5 working days for significant hazards), your landlord must offer to provide you and everyone who lives with you somewhere else to stay.

When providing this, your landlord must consider:

- **your needs** – choosing the right option where available, for example, another social home, a private rental, a short-term holiday let or (for short stays) a hotel. This should include making sure it is accessible to you.

- **your location** – the area you live, work and go to school. If your landlord can't find somewhere near these areas, they should work with you to agree on the best alternatives
- **everyone who lives with you in your household** – including children who stay overnight at least once a week

How long landlords have to provide suitable alternative accommodation

There's no fixed time limit for how long your landlord has to provide alternative accommodation, but they must keep it as short as possible and avoid delays.

Your landlord will stop needing to provide alternative accommodation when:

- your home is made safe
- a follow-up investigation finds no serious hazard or safety work is needed in your home
- your landlord can't get the right permissions to carry out the work, for example from the building owner or Building Safety Regulator
- you choose to leave the alternative accommodation and tell them in writing

Landlords should:

- keep you updated on repair progress
- explain any delays and give a timeline for returning home
- discuss any extra costs or inconvenience (for example, transport, food, lost work) and may offer compensation

Accepting or refusing alternative accommodation

You can accept or refuse alternative accommodation.

- you might want to stay with friends or family instead
- you can ask questions or request more information about whether the alternative accommodation is right for you. This is not the same as refusing it
- not everyone who lives with you in your household has to move to the alternative accommodation Some members may wish to stay at home
- if you do not accept the offer of your landlord giving you alternative accommodation but later change your mind, your landlord doesn't have to offer again

- you can go home anytime. Once you confirm in writing that you no longer want the alternative accommodation, your landlord's duty ends

If you decide to stay in your home or return home before the hazard is fixed, your landlord must provide information on how to stay safe.

If you or part of your household stay home, the landlord might still consider offering some help, like covering extra costs for storing your belongings. Accepting alternative accommodation does not affect your tenancy.

10. Hazards not covered under Awaab's Law

This section sets out what hazards might not be covered by Awaab's Law.

Even if Awaab's Law doesn't apply, your landlord still has a duty to keep your home safe. That's why it's recommended you report hazards even if they are not covered by Awaab's Law. Further guidance on how to report an issue to your landlord can be found on the [Make Things Right \(https://housinghub.campaign.gov.uk/make-things-right/\)](https://housinghub.campaign.gov.uk/make-things-right/) website.

Significant hazards other than damp or mould

Awaab's Law applies to any emergency (excluding overcrowding) but currently only covers significant hazards where they are linked to damp or mould.

Issues outside the landlord's legal responsibility

Some hazards aren't your landlord's legal responsibility under Awaab's Law.

These include:

- issues in shared areas of the building or area around your home not managed by your landlord
- problems in homes or areas next or near to yours not owned by your landlord

Even if they legally do not have to fix the hazard, your landlord should still try to help, by contacting who is responsible (like a building manager or freeholder) and following their own policies or other legal duties.

Fixtures and fittings not provided by the landlord

Your landlord is not responsible for damage to fixtures and fittings they didn't provide because those items are not part of the original tenancy. For example, damage to a washing machine that you own.

Damage caused by tenant actions or breach of contract

Awaab's Law will not apply if significant or emergency hazards are the result of something that goes against your tenancy agreement. For example, it may not apply if:

- you've damaged your home on purpose
- you've removed or changed fixtures (like doors or windows) without permission

Check your tenancy agreement for more information on what counts as breach of contract.

Cladding

Awaab's Law is designed to make sure social housing landlords quickly fix urgent hazards, like damp, mould, or serious safety risks. Fire safety is really important to help keep you safe at home. However, work to fix unsafe cladding is not covered by Awaab's Law because:

Fire safety laws already apply

Landlords or the building's responsible person already have legal responsibilities under the Regulatory Reform (Fire Safety) Order 2005 and the Building Safety Act 2022 part 4 (for [higher-risk buildings \(https://www.gov.uk/government/collections/guidance-on-the-criteria-for-being-a-higher-risk-building\)](https://www.gov.uk/government/collections/guidance-on-the-criteria-for-being-a-higher-risk-building)) to assess and manage fire risks in buildings, including risks from cladding.

Cladding work is complicated and long-term

Fixing or replacing cladding usually takes months or even years. It involves planning, funding, and specialist contractors, so it doesn't fit in the emergency repair timelines set by Awaab's Law

Landlords should still investigate emergency fire safety hazards and take other actions under Awaab's Law to keep tenants safe. If you are concerned about a fire safety hazard, you should still report it to your landlord.

What if the problem can't be fixed?

If an emergency or significant damp and mould hazard is found and your landlord can't fix it even though they have made every effort, your landlord won't have broken Awaab's Law. It might not be possible to fix a problem because:

- it's caused by something your landlord isn't responsible for
- it's a piece of work that needs planning permission or other sign off and they couldn't get it

Your landlord might offer somewhere else to stay while looking for a longer-term solution, such as a permanent move.

11. What if your landlord doesn't act

Using your landlord's complaints process

If you're unhappy with how your landlord handled a problem in your home, use their formal complaints process. This is usually the quickest way to fix the problem. Your landlord's complaints procedure should help you get a fair outcome without having to go to court.

Your landlord must clearly explain:

- how to make a complaint
- what steps will be followed
- where to get support, including options like mediation or dispute resolution

You can usually find the complaints process on your landlord's website or in your tenant handbook. If not, ask your housing officer or contact your landlord directly.

Your landlord cannot treat you unfairly for making a complaint. Your landlord should not treat you differently based on any of the protected characteristics in the Equality Act 2010:

- age
- disability
- gender reassignment

- marriage or civil partnership
- pregnancy or maternity
- race
- religion or belief
- sex
- sexual orientation.

If you're concerned about discrimination, you can get free advice from the [Equality Advisory Support Service](https://www.gov.uk/equality-advisory-support-service) (<https://www.gov.uk/equality-advisory-support-service>).

If you are not happy with your landlord's final response to your complaint, you can go to the Housing Ombudsman.

The Housing Ombudsman Service (HOS)

What they do

A free, independent service that investigates complaints about social landlords in England. The Ombudsman route is often less formal and cheaper than going to court.

The Ombudsman can only investigate when you've completed your landlord's internal complaint procedure, but they can give you advice while you are making a complaint.

You can contact the Ombudsman if:

- you want advice on how to complain to your landlord
- your landlord hasn't fixed your complaint after you followed their process
- your landlord isn't responding at all
- your landlord has given you their final response letter

How to contact them

- online complaint form via the [Housing Ombudsman website](https://www.housing-ombudsman.org.uk/residents/bring-your-complaint-to-the-housing-ombudsman/) (<https://www.housing-ombudsman.org.uk/residents/bring-your-complaint-to-the-housing-ombudsman/>)
- phone: 0300 111 3000
- post: Housing Ombudsman Service, PO Box 1484, Unit D, Preston, PR2 0ET

Using the online complaint form is the fastest way to send your complaint, and avoid delays.

If your complaint involves delays or failures under Awaab's Law (for example, slow action on damp or mould), the Ombudsman can:

- investigate

- decide if your landlord acted fairly and reasonably in the circumstances, including considering whether it met the requirements of Awaab's Law
- recommend action or compensation
- assess both the issue and how your complaint was handled

It's important to keep records of all communication with your landlord to help with investigations by the Ombudsman, as well as any impacts on you or your health, and on people who live with you in your household.

If the Housing Ombudsman finds that your landlord didn't act properly (known as maladministration), they can order your landlord to take action to put things right. This could include:

- **practical actions** - Such as fixing repairs or improving communication with you
- **compensation** - Your landlord might be asked to pay you money for the trouble or harm caused
- **apology** - You might receive a formal written apology from your landlord
- **service improvements** - Your landlord might be told to improve how they work, for example, by updating policies or training their staff
- **recommendations** – The Ombudsman can also make recommendations which help prevent similar issues in future. While your landlord legally does not have to follow these recommendations, they are strongly encouraged to

You can find further information on how the [Housing Ombudsman will investigate your complaint along with guidance on how long this may take \(https://www.housing-ombudsman.org.uk/residents/how-will-you-investigate-my-complaint/#g\)](https://www.housing-ombudsman.org.uk/residents/how-will-you-investigate-my-complaint/#g).

Pre-Action Protocol (Pre-Court Protocol)

If your home is in poor condition and your landlord hasn't fixed the problem after you have reported it, the Pre-Action Protocol provides guidance to help you and your landlord try to sort things out before going to court.

It's designed to:

- encourage you and your landlord to communicate
- help get repairs done quickly
- make sure you get any compensation you're entitled to
- avoid the time and cost of legal action where possible

The Housing Ombudsman can still look into your case if you have started action under the protocol, as long as no court action has been taken yet (for example, you or your

solicitor filed a legal claim). If court action has been taken, the Ombudsman will stop their investigation.

Even if legal steps are being considered, landlords must still carry out repairs, and both sides should keep communicating to make your home safe.

You can find more information about the Pre-Action Protocol for [Housing Conditions Claims](https://www.justice.gov.uk/courts/procedure-rules/civil/protocol/prot_hou#4) (https://www.justice.gov.uk/courts/procedure-rules/civil/protocol/prot_hou#4) on the Justice UK website. This includes templates for a Letter of Claim, which is the first step in the process. You don't need a solicitor to use the protocol, but it can be more difficult to follow.

Taking court action

If your landlord fails to meet their responsibilities under Awaab's Law, you (as a named tenant on your tenancy agreement) can take them to court for breach of contract. If the court finds the landlord at fault, it can order them to:

- carry out the repairs
- pay you compensation
- cover some or all your legal costs

If the court does not find your landlord at fault, you might have to pay the landlord's legal costs, which can be very high.

Going to court can be time consuming and expensive. If you think your landlord is not acting on Awaab's Law, you may want to explore or try other options first to help get things sorted before moving to court action, like the Housing Ombudsman.

If you've already received compensation through the Housing Ombudsman or another process, the court will take that into account. If the amount of compensation awarded by court is more than previously received, you will be awarded the difference.

A solicitor or a [Citizens Advice Bureau](https://www.citizensadvice.org.uk/) (<https://www.citizensadvice.org.uk/>) can provide further advice on pursuing court action.

Guidance on no-win-no-fee solicitors

If you want to bring a case to court, you may want legal representation. You can use a law firm or solicitor regulated by the Solicitors Regulation Authority who works under a Conditional Fee Agreement (CFA). Cases are often taken on a contingency fee basis, also known as a 'no-win, no-fee' arrangement. This means if you lose at court your

solicitor is not paid for their time, but the court may order you to pay the landlords' costs. You should:

- ask your solicitor how much of your compensation they will keep as a **success fee** under a CFA
- **read the contract carefully** and ask your solicitor to explain who pays the landlord's costs if your claim is unsuccessful
- you may also use a **Damages-Based Agreement (DBA)**, where the solicitor takes a fixed percentage of any compensation you receive
- consider using a solicitor who has a specialist legal aid contract in housing as they will have experience of housing disrepair claims, both under legal aid and CFAs

A claims management company (CMC) helps people make compensation claims, such as for housing disrepair. However, unlike a solicitor they may not be legally qualified. If you are considering using a CMC to make a housing disrepair claim, you should:

- check that the firm is regulated by the Financial Conduct Authority (FCA) or one of the other legal regulators
- be aware that you do not need to use the services of a professional representative. You can make a claim to your landlord and the Housing Ombudsman for free yourself

Further information is available from:

- [the FCA regarding claims management companies](https://www.fca.org.uk/consumers/using-claims-management-companies) (<https://www.fca.org.uk/consumers/using-claims-management-companies>)
- [the Solicitors Regulation Authority regarding how to navigate no win, no fee agreements](https://www.sra.org.uk/consumers/choosing/no-win-no-fee/#work) (<https://www.sra.org.uk/consumers/choosing/no-win-no-fee/#work>)
- [the Housing Ombudsman](https://www.housing-ombudsman.org.uk/residents/) (<https://www.housing-ombudsman.org.uk/residents/>)

Legal Aid

Legal aid helps cover the cost of legal advice, family mediation, and representation in court or tribunals for people who cannot afford it.

Legal aid may be available to help cover the cost of legal advice about a disrepair problem if there is a serious risk of illness or injury. It may also cover the cost of legal representation if the case goes to court. To qualify, the issue must be serious, the case must be eligible, and you must be unable to pay your own legal costs.

Further information is available at: [Housing, homelessness, losing your home - GOV.UK](https://checklegalaid.service.gov.uk/housing/) (<https://checklegalaid.service.gov.uk/housing/>).

You can also contact the Civil Legal Aid (CLA) telephone helpline by calling **0345 345 4345** or by texting 'legalaid' and your name to **80010** to ask for a call back.

The costs are the same as a normal text message. More information is available on the [CLA website \(https://www.gov.uk/civil-legal-advice\)](https://www.gov.uk/civil-legal-advice).



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